

		<u>court is directed to give notice of this hearing by first class mail to all claimants identified in attachment 8 to the petition.</u> Petitioner's counsel is ordered to give notice of this ruling.
7.	Arnel Management Company vs. Jouini 2021-01223045	Before the court is the hearing on the order to show cause as to why this case should not be dismissed as to defendant Abdelhedi Jouini (Jouini) for failing to serve Jouini within three years of filing the complaint. Plaintiff Arnel Management Company (Plaintiff) commenced this action against Jouini and the other defendants on September 24, 2021. On November 2, 2021, Plaintiff took Jouini's default, and on August 3, 2023, the court entered a default judgment against Jouini. On May 14, 2026, the court granted Jouini's motion to set aside and vacate the default and default judgment entered against him on the ground they were void because Plaintiff never validly served Jouini. In granting that motion, the court set the current order to show cause and ordered Plaintiff to file and serve any response or objection to the order to show cause by June 29, 2026. Plaintiff has not filed any response to the court's order to show cause. Pursuant to Code of Civil Procedure section 583.210, the summons and complaint in an action must be served on the defendant within three years after the action is commenced as to that defendant. Only valid service complies with the requirements of section 583.210. (<i>Dill v. Berquist Construction Co.</i> (1994) 24 Cal.App.4th 1426, 1433.) Here, as the court found on Jouini's motion, Plaintiff's service on Jouini was not valid and did not confer jurisdiction over him. Nearly five years have elapsed since Plaintiff commenced this action against Jouini and no valid service has been achieved. Pursuant to Code of Civil Procedure section 583.250, the court is required to dismiss an action against any defendant who is not served within three years. There are various statutory provisions that will toll the three-year period in certain circumstances or otherwise excuse the failure to serve within that period. The burden is on the plaintiff to identify and establish the applicability of any tolling provision or excuse. (<i>Putnam v. Clague</i> (1992) 3 Cal.App.4th 542, 549.) Plaintiff did not file any response to the court's order to show cause and therefore has not established any tolling or excuse for failing to time serve Jouini.

		Accordingly, this action is hereby DISMISSED WITHOUT PREJUDICE as to Jouini for failure to serve within three years. (Code Civ. Proc., § 581, subd. (b)(4).) The clerk is directed to give notice of this ruling to all parties.
8.	<i>Kirk vs She</i> <i>2026-01573506</i>	Before the court is the hearing on the order to show cause why an order for sale of dwelling should not issue relating to property located at 24664 Las Patranas, Yorba Linda, California 92887, and owned by judgment debtor the Peter Seh Living Trust 2001, dated September 13, 2001 (Debtor). The order to show cause was entered on June 4, 2026, based on the application of judgment creditors Benjamin Kirk and Butterfield Property LLC (collectively, Creditors). As more fully set forth below, the hearing on the order to show cause is CONTINUED TO THURSDAY, SEPTEMBER 24, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for Creditors to establish proper service of all necessary documents in accordance with Code of Civil Procedure section 704.770. The court previously found Creditors' application satisfied the statutory requirements and therefore the court entered the order to show cause and instructed Creditors to give notice. (Code Civ. Proc., §§ 704.750, 704.760, 704.770; see ROA 17.) The court specifically stated in the order that all parties must be served as required by Code of Civil Procedure section 704.770. Here, Creditors fail to establish proper service in accordance with Code of Civil Procedure section 704.770. That code section required Creditors to serve (1) a copy of the order to show cause, (2) a copy of the application of the judgment creditor for the order to show cause, and (3) a copy of the notice of the hearing in the form prescribed by the Judicial Council. Those documents must be served on Debtor either personally or by mail. Those same documents also must be personally served on any occupant of the dwelling or, if there is no occupant present at the time service is attempted, the documents must be posted in a conspicuous place at the dwelling. Creditors filed a proof of service showing they posted copies of the application for order of sale and the order to show cause at the property. The proof of service, however, fails to show Creditors posted or otherwise served the notice of the hearing in the form prescribed by the Judicial Council.